



SPONSOR: Rep. Cooke & Sen. Poore & Sen. Hocker
Reps. Collins, Osienski, Ross Levin, Yearick; Sens.
Richardson, Seigfried

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 276

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO THEFT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 841, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 841. Theft; class B felony; class D felony; class F felony; class G felony; class A misdemeanor; restitution.

4 (c) (1) Except where a victim is 62 years of age or older, or an “adult who is impaired” as defined in § 3902 of
5 Title 31, or a “person with a disability” as defined in § 3901(a)(2) of Title 12, theft is a class A misdemeanor unless
6 the value of the property received, retained or disposed of is \$1,500 or more, in which case it is a class G felony.

7 (2) Where a victim is 62 years of age or older, or an “adult who is impaired” as defined in § 3902 of Title 31,
8 or a “person with a disability” as defined in § 3901(a)(2) of Title 12, theft is a class G felony unless the value of the
9 property received, retained or disposed of is \$1,500 or more, in which case it is a class F felony.

10 (3) Notwithstanding paragraphs (c)(1) and (2) of this section:

11 a. Where the value of the property received, retained or disposed of is more than \$50,000 but less than
12 \$100,000, theft is a class D ~~felony; felony.~~

13 b. Where the value of the property received, retained or disposed of is \$100,000 or more, theft is a class B
14 felony.

15 (4) For purposes of this section, a series of related thefts committed in a continuing course of conduct by a
16 person or group of persons may be aggregated into 1 count or charge, with the sum of the aggregate value of the
17 property being the value considered in determining the degree of theft. A continuing course of conduct is a pattern of
18 actions composed of more than 1 act over a period of time, regardless of duration. Acts indicating a course of conduct
19 that occur in more than 1 jurisdiction of this State may be used by any other jurisdiction in which an act occurred as
20 evidence of a continuing pattern of conduct or a course of conduct.

SYNOPSIS

This Act permits the value of items stolen at separate times to be grouped and prosecuted as one charge, if the thefts were part of a pattern. It also allows the occurrence of an act in one jurisdiction to be used as evidence of a pattern being charged in another jurisdiction.

This Act also makes technical corrections to existing law to conform to the standards of the Delaware Legislative Drafting Manual.